

The Maharashtra Housing and Area Development (Maharashtra Slum Improvement Fund) Rules, 1988

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State of Maharashtra - Act

The Maharashtra Housing and Area Development (Maharashtra Slum Improvement Fund) Rules, 1988

MAHARASHTRA

India

The Maharashtra Housing and Area Development (Maharashtra Slum Improvement Fund) Rules, 1988

Rule

THE-MAHARASHTRA-HOUSING-AND-AREA-DEVELOPMENT-MAHARASHTRA-SLUM-IMPROVEMENT-FUND-RULES-1988 of 1988

Published on 10 June 1988

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The Maharashtra Housing and Area Development (Maharashtra Slum Improvement Fund) Rules, 1988

Published vide Notification No. G. N., H. & S. A. D. No. SCS. 1678/CR-65/D-7, dated 10th June, 1988 (M. G., 1988, Part 4B, p. 558)

In exercise of the powers conferred by sub-section (1) and clause (xvi) of sub-section (2) of section 184, read with sub-sections (1) and (2) of section 117 of the Maharashtra Housing and Area Development Act, 1976 (Maharashtra XXVIII of 1977) and of all other powers enabling it in that behalf, the Government of Maharashtra hereby makes the following rules, namely :-

1.

Short title.

- These rules may be called the Maharashtra Housing and Area Development (Maharashtra Slum Improvement Fund) Rules, 1988.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Maharashtra Housing and Area Development Act, 1976;

(b)

"Board" means a Board, established under section 18 of the Act;

(c)

"Financial Controller" means the Financial Controller appointed by the Authority with the previous approval of Government, under sub-section (1) of section 19;

(d)

"Fund" means the Maharashtra Slum Improvement Fund created under sub-rule (1) of rule 3;

(e)

"Government" means the Government of Maharashtra;

(f)

"Section" means section of the Act. Words and expressions used in these rules but not defined therein, shall have the same meaning respectively assigned to them in the Act.

3.

Creation of Fund.

(1)

A Fund called "the Maharashtra Slum Improvement Fund" shall be created and maintained by the Authority.

(2)

It shall consist of -

(a)

the service charges recovered from the occupiers under section 114 and credited to the Fund; and

(b)

an annual contribution from Government and local authorities under section 118.

4.

Operation of Fund.

- The proceeds of the fund shall be utilised for-

(a)

payment of Grant-in-aid to the Municipal Corporation or Municipal Councils for carrying out such improvement works of providing civic amenities to the occupants of the slum areas as the Board concerned may entrust to them or to any other agency recognised by it under section 105;

(b)

expenditure on staff for improvement of slums;

(c)

any other purpose provided by Government from time to time for rehabilitation and improvement of conditions of slum areas.

5.

Investment of surplus amount in the Fund.

- Any surplus amount in the Fund, which may not be required by the Board for performing its duties and functions under Chapter IX of the Act, may be deposited by the Financial Controller in the Reserve Bank of India or in such Scheduled Bank or invested in such securities as may be approved by Government under section 35.

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